

		the Court finds that the declaratory judgment Cross-Complainant seeks is an appropriate subject for a declaratory relief action. Cross-Defendant argues that declaratory relief is not necessary or proper because the Cross-Complaint only seeks to redress past wrongs, but the Court finds there is an ongoing ripe controversy as to the Parties respective rights and duties under the relevant insurance policies as it pertains to Cross-Defendant's duty to defend Cross-Complainant with respect to Ace's subrogation claim. Accordingly, the motion is denied as to both noticed issues. Cross-Complainant shall provide notice of this ruling.
3	Casate vs. Allview Real Estate 2026-01542936	Demurrer to Complaint Motion to Strike Complaint Continued. See minute order dated 6/23/26 (ROA 37).
4	Gallagher vs. Oak Tree Business Systems, Inc. 2021-01232788	Motion for Bifurcation Off calendar. See minute order dated 6/11/26 (ROA 167).
5	Garay vs. L'Abri Management, Inc 2026-01553144	Demurrer to Complaint Defendants L'Abri Management, Inc.; Beccy Hasselbarth, and individual and as Trustee of the Beccy Hasselbarth Trust dated February 1, 2018; and Fay Gallegos' Demurrer to the Complaint is OVERRULED in part and SUSTAINED in part. Fifth Cause of Action – Intentional Infliction of Emotional Distress To state a cause of action for Intentional Infliction of Emotional Distress ("IIED"), the plaintiff must allege: (1) outrageous conduct by the defendant; (2) the defendant's intention of causing or reckless disregard of the probability of causing emotional distress; (3) the plaintiff's suffering severe or extreme emotional distress; and (4) actual and proximate causation of the emotional distress by the defendant's outrageous conduct. (<i>Yau v. Santa Margarita Ford, Inc.</i> (2014) 229 Cal.App.4th 144, 161.) For conduct to be outrageous for purposes of IIED, the conduct must be so extreme as to exceed all bounds of that usually tolerated in a civilized society. (Id.) In addition, "[the defendant's] conduct [must be] directed at the plaintiff, or occur in the presence of a plaintiff of